KASHRUT COURSE AT TIFERET EYAL

Cooked by a Non-Jew? Bishul Akum and Pat Akum

Kashrut Course, Part 5

Series: Kashrut, a six-part course at Tiferet Eyal, Hendon **Shiur:** Part 5 of the six-part Kashrut course, given by Dayan Daniel Kada at Tiferet Eyal, Tuesday 25 June 2019

These notes are based on an automatic transcript of the recording.

Introduction

After the philosophy of kashrut, vegetarianism, meat and milk, and Tevilat Kelim, the Rabbi turned to "a slightly contentious topic": **hechsherim**, what a kashrut certificate actually does and when it is needed, followed by:

- **Bishul Akum**: food **cooked** by a non-Jew, typically in liquid.
- **Pat Akum**: food **baked** by a non-Jew, dry.

Unlike last week's Tevilat Kelim, which is a Torah mitzvah, everything tonight is a **rabbinic enactment**.

Part 1: Why Did the Hachamim Forbid It?

The Rambam writes:

There are some foods that the Hachamim prohibited, even though there is no biblical basis for the prohibition... in order to prevent Jews from mingling with non-Jews socially, so they will not come to intermarry with them.

Imagine meat that is perfectly kosher: a kosher animal, correct shechita, blood removed, kosher pots, all in your own kitchen. Or something naturally kosher, like potatoes or wheat. If a non-Jew cooks or bakes it for you, there may still be a problem.

A participant objected that the intermarriage concern hardly applies to a 75-year-old happily married with children. The Rabbi answered that if everyone thought that way, nobody would keep anything: "Everybody can have an exception." A rabbinic decree is made comprehensively.

A second reason

Other Rishonim give another reason: a non-Jew **may not appreciate how careful one must be**, and could feed you something non-kosher. Some non-Jews have worked with Jewish families for years and know exactly what is needed. Others might have just finished a pork sandwich and not washed their hands.

The difference: a non-religious Jew

Can a Jew who is not observant cook for you?

- **By the Rambam's reason** (intermarriage), there is no problem. There is no prohibition on marrying a non-observant Jew.
- **By the second reason** (lack of sensitivity), the same concern could apply.

Chacham Ovadia Yosef has a long teshuvah on this. His conclusion: **one may rely on a non-religious Jew** to light the fire or cook, though ideally, to satisfy all opinions, a religious Jew should do it. That is why many kashrut agencies employ religious staff for this. But at home, if a relative who is not religious cooks for you, there is plenty to rely on.

Part 2: What Does a Hechsher Actually Do?

"Many people are brought up thinking that everything is non-kosher until you see a kosher stamp. The truth is the absolute opposite. **Almost everything is kosher.**"

Apart from **meat, poultry and fish**, where the Torah gives signs for which species are kosher and requires shechita, nearly everything is kosher in principle. The main exceptions are **wine, cheese, milk and eggs** (some of which would be covered in a later shiur).

The problem is processing

Modern food is ultra-processed, full of flavourings, oils and ingredients of unknown origin, often extracted from forbidden sources:

- Some **sweets** used to be coloured or flavoured with **cochineal**, made from a beetle.
- **Flavourings** are a particular problem: even a tiny amount that gives taste is **never nullified** (*batel*) in sixty.
- **"Vegetable oil"** can include **oils derived from fish**, possibly non-kosher fish. Named oils such as **olive oil** or **sunflower oil** are fine.

When you can read the ingredients

In a country where you can trust the ingredient lists (England and America definitely; France and Germany too; Spain he was unsure about), **if you go through every ingredient and know for certain each one is kosher, there is no problem eating it without any hechsher**.

That is exactly what the **KLBD food guide** does:

- A product with the **KLBD logo** means they have a **contract** with the manufacturer, can go in, and must be **notified of any change**. That is a higher level.
- The **majority** of products listed have **no logo** but are still listed as kosher. That simply means they have **checked the ingredients**. They have no contact with the manufacturer.

What about the same production line being used for pork? First, at big companies, with modern health and safety and cleanliness, it is highly unlikely. Second, even if it happened, it is not there to give flavour, so it would be **nullified in sixty**. But if you **know** it is happening, you cannot rely on nullification.

Juices and smoothies

You can buy **orange juice** at Asda or Tesco with no hechsher, because the ingredients are clear. But watch **smoothies**: many now use **grape juice** as a cheaper sweetener instead of sugar, and grape products are a kashrut issue. A participant mentioned that a particular brand's smoothies had been flagged as not acceptable even without grapes. The Rabbi had not heard this and said he would look into it; perhaps the authorities had found a specific problem on that production line.

The vegan restaurant

Previewing a later shiur, the Rabbi mentioned that someone involved in kashrut supervision had discovered that a **vegan restaurant** was using **breadcrumbs that had been immersed in pig fat**. That is for flavour, so it is not nullified. Vegan does not mean kosher.

Even when all the ingredients are kosher, there remains the question of **Bishul Akum and Pat Akum**.

Part 3: Bishul Akum: Two Conditions

If any food cooked by a non-Jew were forbidden, one could never eat anything cooked by a non-Jew. So the Hachamim limited the decree to food that meets **both** conditions:

1. **It cannot be eaten raw** (*eino ne'echal kemot shehu chai*).
2. **It is fit to be served at a royal table** (*oleh al shulchan melachim*).

Condition 1: not eaten raw

If the food could have been eaten raw, the non-Jew has not done you a great favour by cooking it, so it will not bring people together.

- **Vegetable soup** of water, carrots and tomatoes: permitted, since they can be eaten raw.
- **Tea and coffee**: permitted. The main ingredient is **water**, which you could drink without him.
- **Eggs**: forbidden. Chazanim sometimes eat raw eggs for their voice, as noted in a number of places in halachah, but that is not the normal way.
- **Fish today.** Twenty years ago, **salmon** cooked by a non-Jew was forbidden. Today, with **sushi and sashimi**, raw fish has become the norm, so in England fish is basically **no longer subject to Bishul Akum**. These halachot depend on time and place.

Asked about raw meat dishes, the Rabbi said that is still a specific, uncommon form of eating; if it became widespread, "things will change, 100%." These are among the hardest halachot to define, because they depend on the norms of a place.

Condition 2: a royal table

The Chazon Ish and Rabbi Shimon Schwab. In the 1950s Rabbi Schwab visited the Chazon Ish, who was upset that many people in Europe were eating **canned sardines**, cooked by non-Jews. Rabbi Schwab answered that sardines would never be served at a royal banquet. The Chazon Ish replied that, from what he had heard, **the kings of England eat sardines for breakfast**. "I don't know where he got that from." For him, if royalty eat it at all, it is "fit for kings."

The accepted view. Rabbi Schwab's response, which is how **Chacham Ovadia rules** and what **virtually all kashrut agencies** follow: the Gemara says ***shulchan melachim***, the table of **kings** in the plural, meaning **banquets**, formal dinners where distinguished people enjoy each other's company. You will never

get canned sardines there. The practical test is: **would it be served at a special dinner, such as a wedding?** Food that wealthy or aristocratic people eat privately does not count.

So **chickpeas, corn snacks, cornflakes, popcorn** are permitted, provided the ingredients are kosher.

Canned food

Canned food is not served at royal banquets. **But it depends how it was made.** If the food was **cooked before canning**, it was already cooked by a non-Jew before it reached the can.

The Rabbi looked into how **John West tuna** is made: it is **cooked for two to four hours** first, then canned and steamed. That would normally be a problem, but since **tuna is eaten raw** today, it is not a Bishul Akum issue. Nevertheless, he advised **buying tuna with a hechsher**, for a different reason: there are **eleven species** called tuna. Most canned tuna is **skipjack**, which is kosher, but one cannot be 100% certain.

Canned fruit, canned corn: permitted. **Canned potatoes**: probably fine, if they are cooked in the can, but check.

Crisps: the variety or the food?

A big discussion among the Acharonim: what if a food is "royal" in general, but **this form** of it is not?

Crisps are made of potatoes, and potatoes (baked, roasted, deliciously cooked) are served at royal tables. Some poskim say every form of the food is therefore included. **The final halachah**, again followed by the agencies, is that **we look at each specific food**:

- A non-Jew may **not** bake or cook you **potatoes**.
- But **crisps** are not served at royal banquets, so crisps such as **Walkers** are permitted if the ingredients are kosher. Some are stringent.

Quick reference

Permitted if cooked by a non-Jew (ingredients kosher)	Must be cooked by a Jew
Tea, coffee, **beer** (water is the main ingredient)	**Meat**, **chicken**
Vegetable soup; carrots, green peas, cabbage, mushrooms	**Potatoes**
Fish today (eaten raw)	**Eggs**
Popcorn, crisps, cornflakes, snacks, chocolate	**Rice** (not eaten raw)
Canned corn, canned fruit	
Beetroot, now often served raw in restaurants	

On **beer**: Tosafot in Avodah Zarah records that people regularly drank beer with non-Jews. On **cooked beetroot**: factory-cooked plain beetroot (for example from Asda) is fine. Beetroot cooked **in the back of a greengrocer's** is not, because who knows what else was cooked in those pots.

Part 4: The Au Pair at Home

"Unfortunately I think lots of people have stumbled with this." Many families have non-Jewish cleaners, au pairs or housekeepers, and ask them to cook chicken, meat or rice for the children. That is Bishul Akum.

What can you do? **It is not enough to switch the fire on in the morning and let her cook all day.**

- **Shulchan Aruch (Sephardim):** at the very least, **you light the fire and put the pot on**. That is a significant enough contribution for it to count as *bishul Yisrael*.
- If she put the pot on, **you stirring** it and taking part in the cooking can also help.
- Foods that are not subject to Bishul Akum (those eaten raw, or not "royal") she may cook entirely by herself.

Restaurants: a problem for Sephardim

- **Ashkenazim (Rama):** it is enough for a Jew to **light the fire**. Many commercial kitchens now have **pilot lights** that are lit once every few months and stay on permanently, which is cheaper than switching off.
- **Sephardim:** a Jew must **put each pot on the fire**, which is difficult to arrange in a restaurant.

So even in restaurants in Golders Green, Hendon or anywhere in England with the best hechsher, there is a problem for Sephardim. **Chacham Ovadia** was asked and wrote that **if necessary one may be lenient**, combining:

1. The **doubt** whether the halachah follows the Shulchan Aruch or the Rama on putting the pot on.
2. An opinion among the **Rishonim** (not followed on its own) that cooking done **commercially**, as a business rather than personally for you, is not Bishul Akum at all.

So in practice people do eat out, though some will not because of this. One simple step: if you order an **egg**, go in and put it on yourself, and it is fine even according to the Shulchan Aruch.

Kashering after Bishul Akum

If a non-Jew cooked meat in your pot when he should not have, the pot needs **kashering**. Interestingly, even an **earthenware** pot, which normally cannot be kashered and must be discarded, may be kashered by **hagalah** here, because Bishul Akum is only rabbinic.

Part 5: Pat Akum: Bread Baked by a Non-Jew

Bread is a **staple**, so there are many more leniencies. Three categories:

Term	Meaning	Status
Pat Yisrael	Baked by a Jew	Permitted
Pat Ba'al HaBayit	Baked by a non-Jew **for his own family**, then offered to you	**Always forbidden**, even if his oven is brand new (unless life is in danger)
Pat Palter	Baked by a non-Jewish **commercial bakery**	Depends: see below

Why Sephardim are often stricter with non-Jewish food

Across Bishul Akum, Pat Akum and *yayin nesech*, the **Shulchan Aruch** is often stricter than the **Rama**. One suggestion: the Rambam, the source of most of the Shulchan Aruch's rulings, lived among **Muslims** with whom there was real social interaction. **Tosafot** and the Ashkenazi authorities in France and England lived among **Christians** who persecuted them and had no social contact with them. In Spain, "until 1492, things were pretty good, relatively," so the concern about intermarriage was much greater.

The Sephardi rule for bakery bread

For Sephardim, commercial non-Jewish bread should not be eaten **unless there is no Pat Yisrael within 18 minutes' walk**. Living in Golders Green, with Grodzinski's and other bakeries nearby, one should not buy bread such as **Kingsmill**.

What do the hechsherim on Kingsmill, Warburtons and Hovis mean? Only that the **ingredients and production** are fine. They are **not** certifying the baking itself; it is still Pat Akum. (There was talk at the time of making one of them Pat Yisrael.) So **on holiday**, with no Pat Yisrael nearby, you may buy Kingsmill from Sainsbury's or Tesco. In France, he had seen very religious people eating **baguettes**, since it is known nothing is added, though one must be careful about additives.

No kosher equivalent, or tastier

If a **specific product** has no Pat Yisrael equivalent, you may buy it (after checking the ingredients):

- **Crumpets**: there are no kosher ones, so it is fine.
- **Ryvita** and **Jacob's crackers** had no hechsher 10 to 20 years ago, and people bought them because there was no equivalent.
- If a particular brand is **tastier** and you prefer it, you need not buy an inferior substitute.

Price counts too. A participant pointed out that if non-Jewish bread is far cheaper, the same logic applies. The Rabbi agreed: "You're right, 100%." The Shulchan Aruch's requirement to walk 18 minutes applies **only when the two are equal in taste and in price**.

"Of course, according to the Kabbalah, you should never have Pat Akum. I'm telling you the halachot according to the *peshat*."

What counts as *pat*?

Anything from the **five grains** (wheat, barley and so on) that is baked:

- Pies, crackers, pretzels, flatbreads, melba toast, pitta, bagels.
- **Cereals** and **biscuits**: Pat Akum, with no real equivalent. That is why we buy **Weetabix** at Tesco: the ingredients are fine, there is no hechsher, and there is no equivalent. If someone started making an equal Weetabix with a hechsher at the same price, we would have to stop.
- **Pancakes and blintzes** depend on how they are made: **deep-fried** in oil falls under **Bishul**; cooked with just a little oil falls under **Pat**.
- **Dried pasta**: a participant noted that it is not cooked before you buy it, and the Rabbi agreed there is no problem at all.
- Biscuits or cakes with **chocolate**: check whether they contain **milk**.

The key contrast

	Pat Akum (bread)	Bishul Akum (cooked food)
Leniency when no equivalent	**Yes**: if there is no equal Pat Yisrael in taste and price nearby	**No**: if it meets both conditions, it is forbidden regardless

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Summary

- A **hechsher** is not what makes food kosher. Most food is kosher; where the ingredients can be trusted and fully understood, no hechsher is needed. Beware flavourings, "vegetable oil," grape juice in smoothies, and non-kosher fats.
- **Bishul Akum** is a rabbinic decree against intermarriage (Rambam) and against careless cooking. A **non-religious Jew** may cook for you (Chacham Ovadia).
- It applies only to food that **cannot be eaten raw** and is **fit for a royal banquet**: meat, chicken, potatoes, eggs, rice. Not to tea, coffee, beer, snacks, crisps, popcorn, cornflakes, raw-edible vegetables, or (today) fish.
- At home, a Jew must at least **light the fire and put the pot on** (Shulchan Aruch). Sephardim eating in restaurants rely on Chacham Ovadia's combined leniency.
- **Pat Ba'al HaBayit** is always forbidden. **Pat Palter**, for Sephardim, only when no **equal** Pat Yisrael (in taste and price) is within 18 minutes' walk.
- Cereals, biscuits, crackers and specific breads with no equivalent may be bought once the ingredients are checked.

Coming up: cheese, milk and wine, and then **eating out in vegan restaurants**.

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